



2025/0360(COD)

5.6.2026

## DRAFT OPINION

of the Committee on Legal Affairs

for the Committee on Industry, Research and Energy and the Committee on Civil Liberties, Justice and Home Affairs

on the proposal for a regulation of the European Parliament and of the Council amending Regulations (EU) 2016/679, (EU) 2018/1724, (EU) 2018/1725, (EU) 2023/2854 and Directives 2002/58/EC, (EU) 2022/2555 and (EU) 2022/2557 as regards the simplification of the digital legislative framework, and repealing Regulations (EU) 2018/1807, (EU) 2019/1150, (EU) 2022/868, and Directive (EU) 2019/1024 (Digital Omnibus)  
(COM(2025)0837 – C10-0303/2025 – 2025/0360(COD))

Rapporteur for opinion: Brando Benifei

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## SHORT JUSTIFICATION

Today, data governance, cloud infrastructure, interoperability and access to data are strategic issues linked to Europe's technological resilience and economic sovereignty. In order to respond to growing geopolitical and market pressures, coherence across legislation should be improved and unnecessary burdens on SMEs reduced, for example by facilitating responsible data sharing and reuse and supporting the development of AI and innovative business models.

In this regard, the Digital Omnibus proposal aims to simplify and improve the coherence of the Union's data framework. Presented as a purely technical and surgical intervention, the proposal nevertheless affects core definitions, rebalances rights and obligations, and introduces changes that can alter the overall balance of the framework itself, without proper political assessment.

Simplification should not result in legal fragmentation or weaker safeguards in areas that remain essential for trust in the European data economy. The Union's data framework must support innovation, competitiveness and the development of a strong European data economy, while remaining fully consistent with legal certainty, transparency, effective enforcement, trust and long-term investment in secure and interoperable European data ecosystems.

This opinion therefore supports a balanced approach: reducing unnecessary complexity where appropriate, while preserving the key principles and governance structures that underpin the Data Act and the Data Governance Act. In line with the remit of the JURI Committee, the amendments focus in particular on issues related to legal certainty, governance, supervision, contractual fairness, interoperability, and the trustworthiness and neutrality of data-sharing ecosystems.

### **Ensuring trustworthy and neutral data-sharing ecosystems**

The opinion seeks to preserve the neutrality and trustworthiness of data intermediation services by strengthening safeguards on transparency, security, accountability and secondary uses of data. It also reinforces registration and supervision requirements, including through harmonised procedures and stronger oversight mechanisms, in order to maintain trust and effective supervision within the Union data-sharing ecosystem.

### **Preserving the Union's open data principles**

Open government data remains a key driver for research, innovation, education, journalism and public-interest projects across Europe. The amendments clarify that the framework does not in itself create new disclosure obligations for public sector bodies and remains without prejudice to existing Union and national access and confidentiality regimes. Several amendments also seek to preserve non-discriminatory re-use, interoperability and the use of standard and open licences. While it is legitimate to address imbalances linked to the economic power of certain very large market actors, this should not lead to fragmented licensing practices or restrictions that undermine the possibility to combine and re-use public sector information across borders and sectors.

### **Ensuring balanced and proportionate public-interest access to data**

On business-to-government data sharing, the opinion seeks to maintain an appropriate balance between public-interest access to data and the protection of legitimate interests of data holders. Public authorities should retain the possibility to access certain data for clearly

defined public-interest purposes, subject to necessity, proportionality and appropriate safeguards. The amendments therefore preserve a framework for public-interest access to data outside emergency situations, while also clarifying and narrowing certain emergency-related mechanisms in order to improve legal certainty. The amendments remove the broad and potentially ambiguous concept of “mitigation” in order to ensure that access to data remains more closely linked to concrete emergency response and recovery activities.

### **Trade secrets**

Additional safeguards are also introduced regarding trade secrets, including clearer confidentiality obligations, proportionality requirements and guidance on the protection of commercially sensitive information in cross-border contexts. In particular, the amendments seek to ensure that refusal of access remains a measure of last resort and that identified risks are first addressed through proportionate technical, organisational and contractual safeguards, rather than through broad precautionary refusals capable of undermining access rights under the Data Act.

### **Preserving fairness and transparency in platform-to-business relations**

The proposed repeal of the Platform-to-Business Regulation raises concerns. The Digital Services Act and the Digital Markets Act pursue different objectives and do not fully replace the broader fairness and transparency safeguards currently available to SMEs and business users operating on online platforms. Preserving fair platform-to-business relations therefore remains important for legal predictability, transparency and trust in the digital single market, notably regarding ranking transparency, complaint-handling mechanisms and safeguards against unfair suspension practices.

### **Cloud switching**

The opinion also seeks to preserve the effectiveness of cloud switching and interoperability obligations in order to reduce vendor lock-in and maintain fair competition in cloud and data processing markets. While the need to reduce disproportionate administrative burdens for SMEs and providers of tailored services is recognised, broad exemptions risk weakening portability rights, creating fragmented switching regimes and undermining the broader market-shaping objectives of the Data Act.

### **Smart contracts**

The proposed deletion of the provisions on smart contracts risks removing important minimum safeguards for automated data-sharing agreements. While concerns regarding legal uncertainty and disproportionate compliance burdens should be addressed, maintaining minimum requirements relating to security, interoperability, controllability and auditability remains important in order to preserve trust, legal certainty and cross-platform compatibility in increasingly automated data-sharing environments.

### **Strengthening legal certainty and the coordinating role of the EDIB**

A central concern throughout the proposal is also the need to maintain legal certainty and coherent implementation across Member States. Several amendments therefore aim to avoid fragmentation, notably by strengthening coordination mechanisms, clarifying responsibilities between competent authorities and reinforcing the role of the European Data Innovation Board in supporting guidance, cooperation and consistent implementation across the Union, including in cross-border situations.

## AMENDMENTS

The Committee on Legal Affairs submits the following to the Committee on Industry, Research and Energy and the Committee on Civil Liberties, Justice and Home Affairs, as the committees responsible:

### Amendment 1

#### Proposal for a regulation

##### Recital 10

###### *Text proposed by the Commission*

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council<sup>10</sup>, which sets the standard for protecting trade secrets within the Union. ***However, disclosure of trade secrets to third-country entities may increase risks to their integrity and confidentiality where there is exposure to jurisdictions with inadequate protections or difficulties in their actual enforcement, potentially resulting in unauthorised use, economic damage and legal uncertainty.***

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<sup>10</sup> Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

###### *Amendment*

(10) Chapter II of Regulation (EU) 2023/2854 requires data holders to make data available, including data protected as trade secrets, to users and their selected third parties, provided confidentiality measures established by the data holder are maintained. This requirement of maintaining confidentiality complements Directive (EU) 2016/943 of the European Parliament and of the Council<sup>10</sup>, which sets the standard for protecting trade secrets within the Union.

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<sup>10</sup> Directive (EU) 2016/943 of the European Parliament and of the Council of 8 June 2016 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure (OJ L 157, 15.6.2016, p. 1).

Or. en

## Amendment 2

### Proposal for a regulation Recital 11

*Text proposed by the Commission*

*Amendment*

**(11) It is necessary to strengthen Regulation (EU) 2023/2854 by introducing an additional ground for data holders to refuse the disclosure of trade secrets, supplementing existing provisions which allow refusal based on the data holder's demonstration of a high likelihood of serious economic damage. Under the new provision, data holders may refuse to disclose trade secrets if they demonstrate a high risk of unlawful acquisition, use, or disclosure to entities subject to regimes with inadequate protection, non-equivalent, or weaker legal frameworks than the applicable Union rules. The new provision also covers instances where the third country legal framework, in theory, is robust or exceeds such Union rules, but lacks appropriate enforcement in practice. Such risks highlight the possibility that trade secrets could be acquired, used, or disclosed in violation of Union law, threatening the integrity and confidentiality of trade secrets.** *deleted*

Or. en

## Amendment 3

### Proposal for a regulation Recital 12

*Text proposed by the Commission*

*Amendment*

**(12) The activation of the refusal mechanism should remain voluntary, and the demonstration done only upon its activation. Data holders should not be required to conduct a full-scale analysis** *deleted*

*or demonstration of the level of trade secret protection in third countries or by a third country entity as a precondition to be able to substantiate their refusal to sharing data or to disclose trade secrets. In their demonstration, data holders may take into consideration various factors, such as insufficient or inadequate legal standards, poor or arbitrary enforcement, historical infringements, foreign disclosure obligations conflicting with Union law, limited legal recourse or remedies for Union entities, the strategic misuse of procedural tactics to undermine competitors, or undue political influence. Given the diverse range of entities, third countries, and data sharing scenarios involved, data holders should focus their assessment and demonstration on pertinent risks and act accordingly, including by setting appropriate safeguards or activating the refusal mechanism. Refusals should be clear, proportionate, and tailored to the specific circumstances of each case, rather than being applied systematically or in a generalized manner across an entire third country.*

Or. en

#### **Amendment 4**

##### **Proposal for a regulation Recital 13**

*Text proposed by the Commission*

*Amendment*

**(13)    *An insufficient protection of trade secrets and the challenges in enforcing them in third countries may cause irreparable harm to European businesses. The objective is therefore to strengthen the safeguards for trade secrets by preventing their leakage to natural or legal persons that are established in or subject to jurisdictions posing such risks.***                      ***deleted***

*This includes Union-based entities controlled by third country entities, who may be acting in bad faith or as fronts for third country entities. Additionally, the objective is to avert direct exposure to third country entities operating within the Union, that are subject to such jurisdictions. Being subject to a third country jurisdiction means the natural or legal person is legally governed, controlled or otherwise bound by the laws or regulatory authority of a third country. Subsidiaries or affiliates of third country parent companies may exploit these jurisdictions to evade or circumvent Union laws. Direct or indirect control refers to the ability to exercise decisive or dominant influence over another entity's management or strategic decisions, whether through ownership of capital or voting rights, financial participation, contractual arrangements, or intermediary entities. Control may be exercised directly or through other means, even without majority ownership. Data holders should use best efforts to obtain the relevant information, which may include searches in public registers or requesting it from the user or third party directly, while ensuring it remains appropriately non-intrusive.*

Or. en

## Amendment 5

### Proposal for a regulation Recital 14

*Text proposed by the Commission*

*Amendment*

*(14) Protecting trade secrets from those vulnerabilities is essential for European industries to sustain their market position and competitive advantage. While data holders may exercise discretion in protecting their trade secrets, refusals to* **deleted**



*share data should be limited to justified, exceptional circumstances, in order to preserve the objectives of Regulation (EU) 2023/2854 of fostering data-driven innovation and a thriving digital economy in the Union. Safeguards against misuse of the refusal mechanism should remain in place, including the data holder's obligation to demonstrate in a duly substantiated manner that disclosure poses a high risk and to notify competent authorities. This demonstration should be provided in writing without undue delay to the user or third party and proportionate to the case at hand. All parties involved should treat the decision and supporting demonstration as confidential in order to uphold the confidential nature of the trade secrets concerned. Users and third parties, as the case may be, may challenge the data holder's decision with the competent authority, in court, or through dispute settlement bodies.*

Or. en

## **Amendment 6**

### **Proposal for a regulation Recital 15**

*Text proposed by the Commission*

*Amendment*

*(15) To simplify the business-to-government data sharing framework under Regulation (EU) 2023/2854 and to clarify ambiguities that previously imposed broader obligations on businesses, it is necessary to narrow the scope of Chapter V of that Regulation from 'exceptional need' to 'public emergencies'. The concept of 'public emergencies', which is defined under Article 2(29) of Regulation (EU) 2023/2854, thus ensures that the obligations laid down in that Chapter are*

*deleted*

*invoked only under well-defined, urgent situations, reducing the technical, administrative and legal challenges that business faced under the previous regime. This would ensure that data requests are relevant and proportionate to responding, mitigating, or supporting the recovery from public emergencies. Since the updated Union framework on European statistics under Regulation (EC) No 223/2009 of the European Parliament and of the Council<sup>11</sup> does not address public emergencies, it is essential to preserve the role of official statistics under Chapter V of Regulation (EU) 2023/2854 to ensure clarity and effectiveness in such situations. It is also necessary to clarify the compensation regime for situations where microenterprises and small enterprises are required to provide data to address a public emergency, in which case such enterprises are allowed to claim compensation.*

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<sup>11</sup> *Regulation (EC) No 223/2009 of the European Parliament and of the Council of 11 March 2009 on European statistics and repealing Regulation (EC, Euratom) No 1101/2008 of the European Parliament and of the Council on the transmission of data subject to statistical confidentiality to the Statistical Office of the European Communities, Council Regulation (EC) No 322/97 on Community Statistics, and Council Decision 89/382/EEC, Euratom establishing a Committee on the Statistical Programmes of the European Communities (OJ L 87, 31.3.2009, p. 164, ELI: <http://data.europa.eu/eli/reg/2009/223/oj>).*

Or. en

## Amendment 7

### Proposal for a regulation Recital 16

*Text proposed by the Commission*

*Amendment*

**(16) In order to mitigate legal uncertainties that could discourage innovative business models, it is necessary to address the substantial compliance ambiguities and burdens associated with the provisions on smart contracts executing data sharing agreements under Article 36 of Regulation (EU) 2023/2854. The absence of harmonised standards and clear definitions for key concepts such as ‘robustness’, ‘access control’, and ‘consistency with contractual terms’, combined with the requirement for a ‘safe termination or interruption mechanism’ potentially incompatible with decentralised or public blockchain architectures built on immutable ledgers, posed challenges to innovators from a cost and opportunity perspective. Additionally, the ambiguity surrounding the performance of the conformity assessment under Article 36(2) of that Regulation risks imposing disproportionate burdens. The elimination of Article 36 of Regulation (EU) 2023/2854 would therefore promote the development and market introduction of new business models, foster innovation, and reduce barriers for emerging technologies.** **deleted**

Or. en

#### *Justification*

*The deletion of Article 36 would remove important minimum safeguards ensuring that smart contracts used in data-sharing agreements remain secure, interoperable and controllable. While legal uncertainty concerns should be addressed, a complete removal of the framework risks creating a regulatory gap in automated data-sharing systems, potentially weakening trust, interoperability and legal certainty.*

## Amendment 8

### Proposal for a regulation Recital 18

*Text proposed by the Commission*

*Amendment*

**(18) For reasons relating to financial planning and attracting investment, providers of data processing services, especially SMEs and SMCs, may prefer and offer contracts of a fixed duration. It is necessary to clarify that providers of data processing services may include provisions on proportionate early termination penalties in those contracts as long as they do not constitute an obstacle to switching. In addition, providers of data processing services that are SMEs or SMCs are particularly burdened by the need to align existing contracts for the provision of data processing services to Regulation (EU) 2023/2854. It is therefore necessary to establish a specific regime for those providers if they provide data processing services, other than IaaS, based on contracts concluded before or on 12 September 2025. Taking into account the aim of Regulation (EU) 2023/2854 to enable switching between data processing services and given that switching charges, including egress charges, constitute a serious obstacle to switching, the new lighter regimes for data processing services that are custom-made or are provided by SMEs or SMCs should not undermine the gradual withdrawal of those charges. Contractual provisions running contrary to that objective should be considered to never have existed, if they are included in contractual agreements on the provision of services falling within the scope of those two new specific regimes.** *deleted*

Or. en

## Amendment 9

### Proposal for a regulation Recital 21

*Text proposed by the Commission*

*Amendment*

**(21) Both Directive (EU) 2019/1024 and Chapter II of Regulation (EU) 2022/868 regulate the re-use of public sector information for innovation purposes. The interplay of the two sets of rules has created legal uncertainty, mainly for public sector bodies. An alignment of the rules in one legal instrument is therefore necessary to bring further legal coherence and certainty.** *deleted*

Or. en

## Amendment 10

### Proposal for a regulation Recital 22

*Text proposed by the Commission*

*Amendment*

**(22) Since both Directive (EU) 2019/1024 and Regulation (EU) 2022/868 share the goal of enhancing the re-use of public sector information, and in order to simplify rules from the perspective of both public sector bodies and of re-users of public sector information, it is rational to repeal Directive (EU) 2019/1024 and Regulation (EU) 2022/868 and align the two regimes and consolidate the rules in a single Chapter under this Regulation. This solution will increase harmonisation of those rules across the Union, reduce the administrative burden associated with interpreting and implementing national legislation and make it easier for businesses to develop cross-border services and products. When designating competent bodies, Member States should ensure that even where sector-specific** *deleted*

*competent bodies are designated, all relevant sectors are ultimately covered. The amendments in this Regulation should be understood not to alter the interpretation of the different definition and terms, unless clearly specified.*

Or. en

## **Amendment 11**

### **Proposal for a regulation Recital 24**

*Text proposed by the Commission*

*Amendment*

*(24) The existing rules should be streamlined to enhance clarity and consistency. Nevertheless, the two reuse regimes should remain distinct and their respective scope of application should continue to depend on the characteristics of the data or documents and the context of their reuse. Public sector bodies should apply the open data regime whenever possible. Only where they determine that data or a document contains information corresponding to certain categories of protected data should they limit its public availability and consider making it available for reuse as protected data.*

*deleted*

Or. en

## **Amendment 12**

### **Proposal for a regulation Recital 59**

*Text proposed by the Commission*

*Amendment*

*(59) Regulation (EU) 2019/1150 establishes a targeted set of mandatory rules at Union level to ensure a fair, predictable, sustainable and trusted online*

*deleted*

*business environment within the internal market. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 provide a comprehensive regulatory framework for a safe, predictable and trusted online environments for all end-users of online services, and establish a level playing field for businesses in digital markets. In the interest of simplification of Union legislation in the field of online intermediation services and online platforms, and given that the objectives and material provisions of the Platform-to-Business Regulation are largely covered by the Digital Services Act and the Digital Markets Act, Regulation (EU) 2019/1050 should be repealed. Regulation (EU) 2022/2065 and Regulation (EU) 2022/1925 contribute to a fully harmonised regulatory framework for digital services and digital markets, by approximating national measures concerning the requirements for providers of intermediary services and the contestability and fairness of core platforms services provided by gatekeepers. For purposes of legal certainty, selected definitions in Article 2, the provisions on restrictions and suspensions in Article 4, as well as on the internal complaint-handling system in Article 11 of Regulation (EU) 2019/1150 that are cross-referenced by other legal acts, in particular Directive (EU) 2023/2831 on improving working conditions in platform work, and Article 15 ensuring enforcement, will temporarily remain in application until the original acts are amended.*

Or. en

## **Amendment 13**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 1 – point a**

Regulation (EU) 2023/2854  
Article 1 – paragraph 1 – point e a

*Text proposed by the Commission*

*Amendment*

**(ea) voluntary registration of data  
intermediation services;** **deleted**

Or. en

*Justification*

*This amendment preserves a stronger and more reliable oversight framework for data intermediation services. Maintaining mandatory registration helps ensure transparency, accountability and effective supervision, particularly where sensitive or high-risk data processing activities are involved, and contributes to greater trust and legal certainty within the European data-sharing ecosystem.*

## **Amendment 14**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 1 – point a**

Regulation (EU) 2023/2854

Article 1 – paragraph 1 – point e b

*Text proposed by the Commission*

*Amendment*

**(eb) voluntary registration of entities  
which collect and process data made  
available for altruistic purposes;** **deleted**

Or. en

*Justification*

*This amendment preserves a stronger and more reliable oversight framework for data altruism organisations. Maintaining mandatory registration helps ensure transparency, accountability and effective supervision, particularly where sensitive or high-risk data processing activities are involved, and contributes to greater trust and legal certainty within the European data-sharing ecosystem.*

## **Amendment 15**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 2 – point a**



*Text proposed by the Commission*

*Amendment*

**(4c) ‘access’ means data use, in accordance with specific technical, legal or organisational requirements, without necessarily implying the transmission or downloading of data;** **deleted**

Or. en

*Justification*

*The proposed definition risks reducing “access” to mere in-situ or view-only consultation under conditions unilaterally determined by the data holder, without guaranteeing transmission, downloading, portability or effective re-use of data. This would undermine the practical effectiveness of Data Act access rights, contradict the Regulation’s logic of machine-readable and retrievable data access, weaken innovation and downstream services, and reinforce the market power of data holders at the expense of users, SMEs and third-party providers.*

## **Amendment 16**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 2 – point c**

Regulation (EU) 2023/2854

Article 2 – points 28a and 28b

*Text proposed by the Commission*

*Amendment*

**(c) the following points (28a) and (28b) are inserted:** **deleted**

**‘(28a) ‘bodies governed by public law’ means bodies that have all of the following characteristics:**

**(a) they are established for the specific purpose of meeting needs in the general interest, not having an industrial or commercial character;**

**(b) they have legal personality;**

**(c) they are financed, for the most part by the State, regional or local authorities, or by other bodies governed by public law; or are subject to**

*management supervision by those authorities or bodies; or have an administrative, managerial or supervisory board, more than half of whose members are appointed by the State, regional or local authorities, or by other bodies governed by public law;*

*(28b) ‘public undertaking’ means any undertaking over which a public sector body may exercise directly or indirectly a dominant influence by virtue of their ownership of it, their financial participation therein, or the rules which govern it. A dominant influence on the part of the public sector bodies shall be presumed in any of the following cases in which those bodies, directly or indirectly:*

- (a) hold the majority of the undertaking's subscribed capital;*
- (b) control the majority of the votes attaching to shares issued by the undertaking;*
- (c) can appoint more than half of the undertaking's administrative, management or supervisory body;’;*

Or. en

#### *Justification*

*This amendment preserves the existing definition in order to maintain greater legal clarity and ensure that the notion of bodies governed by public law continues to be interpreted in a manner consistent with the public-interest objectives of the Regulation. Keeping the definition directly in the text also helps avoid unintended interpretative extensions that could broaden its scope beyond what is necessary in the context of the Data Act.*

#### **Amendment 17**

##### **Proposal for a regulation**

##### **Article 1 – paragraph 1 – point 2 – point c**

Regulation (EU) 2023/2854

Article 2 – point 28a

*Text proposed by the Commission*

*Amendment*

**(28a) ‘bodies governed by public law’** **deleted**  
**means bodies that have all of the**  
**following characteristics:**

**(a) they are established for the specific**  
**purpose of meeting needs in the general**  
**interest, not having an industrial or**  
**commercial character;**

**(b) they have legal personality;**

**(c) they are financed, for the most**  
**part by the State, regional or local**  
**authorities, or by other bodies governed**  
**by public law; or are subject to**  
**management supervision by those**  
**authorities or bodies; or have an**  
**administrative, managerial or supervisory**  
**board, more than half of whose members**  
**are appointed by the State, regional or**  
**local authorities, or by other bodies**  
**governed by public law;**

Or. en

*Justification*

*This amendment preserves the existing definition in order to maintain greater legal clarity and ensure that the notion of bodies governed by public law continues to be interpreted in a manner consistent with the public-interest objectives of the Regulation. Keeping the definition directly in the text also helps avoid unintended interpretative extensions that could broaden its scope beyond what is necessary in the context of the Data Act.*

## **Amendment 18**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 2 – point c**

Regulation (EU) 2023/2854

Article 2 – point 28b

*Text proposed by the Commission*

*Amendment*

**(28b) ‘public undertaking’ means any** **deleted**  
**undertaking over which a public sector**  
**body may exercise directly or indirectly a**  
**dominant influence by virtue of their**

*ownership of it, their financial participation therein, or the rules which govern it. A dominant influence on the part of the public sector bodies shall be presumed in any of the following cases in which those bodies, directly or indirectly:*

- (a) hold the majority of the undertaking's subscribed capital;*
- (b) control the majority of the votes attaching to shares issued by the undertaking;*
- (c) can appoint more than half of the undertaking's administrative, management or supervisory body;;*

Or. en

#### *Justification*

*This amendment preserves the existing definition in order to maintain greater legal clarity and ensure that the notion of bodies governed by public law continues to be interpreted in a manner consistent with the public-interest objectives of the Regulation. Keeping the definition directly in the text also helps avoid unintended interpretative extensions that could broaden its scope beyond what is necessary in the context of the Data Act.*

## **Amendment 19**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 2 – point c a (new)**

Regulation (EU) 2023/2854

Article 2 – point 29

#### *Present text*

(29) ‘public emergency’ means an exceptional situation, limited in time, such as a public health emergency, an emergency resulting from natural disasters, a human-induced major disaster, including a major cybersecurity incident, negatively affecting the population of the Union or the whole or part of a Member State, with a risk of serious and lasting repercussions for

#### *Amendment*

*(ca) point (29) is replaced by the following:*

(29) ‘public emergency’ means an exceptional situation, limited in time, such as a public health emergency, an emergency resulting from natural disasters, a human-induced major disaster, including a major cybersecurity incident, negatively affecting the population of the Union or the whole or part of a Member State, with a risk of serious and lasting repercussions for

living conditions or economic stability, financial stability, or the substantial and immediate degradation of economic assets in the Union or the relevant Member State and which is determined or officially declared in accordance with the relevant procedures under Union or national law;

living conditions or economic stability, financial stability, or the substantial and immediate degradation of economic assets in the Union or the relevant Member State and which is determined or officially declared in accordance with the relevant procedures under Union or national law;  
***for the purposes of this Regulation, “responding to a public emergency” refers to the immediate actions necessary to address and manage the emergency while it is ongoing, whereas “mitigating or supporting the recovery from a public emergency” refers to actions taken after or once the immediate phase of the emergency has passed, aimed at limiting its consequences and restoring normal conditions;***

Or. en

#### *Justification*

*This amendment introduces a clearer and harmonised definition of “public emergency” in order to improve legal certainty and avoid divergent interpretations across Member States. It also helps ensure that emergency-related data access mechanisms remain limited to genuinely exceptional and time-bound situations. It also clarifies the distinction between the immediate response phase of a public emergency and broader mitigation or recovery activities.*

#### **Amendment 20**

##### **Proposal for a regulation**

##### **Article 1 – paragraph 1 – point 2 – point d – introductory part**

Regulation (EU) 2023/2854

Article 2 – point 38a

#### *Text proposed by the Commission*

(d) the following ***points (38a) and (38b) are*** inserted:

#### *Amendment*

(d) the following ***point (38a) is*** inserted:

Or. en

## Amendment 21

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

#### Article 2 – point 38a

*Text proposed by the Commission*

*Amendment*

**(38a) ‘data intermediation service’** **deleted**  
**means a service which aims to establish relationships of an economic character for the purposes of data sharing between an undetermined number of data subjects or data holders and data users, through technical, legal or other means, including for the purpose of exercising the rights of data subjects in relation to personal data, and which:**

**(1) do not have as their main purpose the intermediation of copyright-protected content;**

**(2) are not jointly procured by several legal persons for exclusive use among them;**

Or. en

### *Justification*

*The original Data Governance Act definition ensured a clear distinction between neutral data intermediation and the economic exploitation of data. Its safeguards and exclusions, including for copyright-focused services, closed ecosystems and services monetising data for their own purposes, are essential for legal certainty. Many current concerns stem precisely from the weakening of these elements.*

## Amendment 22

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 2 – point d

Regulation (EU) 2023/2854

#### Article 2 – point 38b

*Text proposed by the Commission*

*Amendment*

**(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent**

**(38b) ‘data altruism’ means the voluntary sharing of data on the basis of the consent**

of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond compensation related to the costs that they incur where they make their data available for objectives of general interest ***as provided for in national law***, where applicable, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

of data subjects to process personal data pertaining to them, or of permissions of data holders to allow the use of their non-personal data without seeking or receiving a reward that goes beyond ***fair*** compensation related to the ***actual*** costs that they incur where they make their data available for objectives of general interest ***in accordance with Union law and, where applicable, national law***, such as healthcare, combating climate change, improving mobility, facilitating the development, production and dissemination of official statistics, improving the provision of public services, public policy making or scientific research purposes in the general interest;

Or. en

#### *Justification*

*This amendment helps strengthen legal certainty and ensures that objectives of general interest are interpreted consistently within the existing EU legal framework, including applicable data protection rules.*

### **Amendment 23**

#### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 2 – point e**

Regulation (EU) 2023/2854

Article 2 – point 49

#### *Text proposed by the Commission*

(49) ‘dynamic data’ means data ***and documents in a digital form***, subject to frequent or real-time updates, in particular because of their volatility or rapid obsolescence; data generated by sensors are typically considered to be dynamic data;

#### *Amendment*

(49) ‘dynamic data’ ***in the context of Chapter VIIc*** means data, subject to frequent or real-time updates, in particular because of their volatility or rapid obsolescence; data generated by sensors are typically considered to be dynamic data;

Or. en

## Amendment 24

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – point 50

#### *Text proposed by the Commission*

(50) ‘research data’ means data , other than scientific publications, which are collected or produced in the course of scientific research activities and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings **and** results;

#### *Amendment*

(50) ‘research data’ means data **or documents**, other than scientific publications, which are collected or produced in the course of scientific research activities and are used as evidence in the research process, or are commonly accepted in the research community as necessary to validate research findings **or** results;

Or. en

## Amendment 25

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 2 – point e

Regulation (EU) 2023/2854

Article 2 – point 51 – introductory part

#### *Text proposed by the Commission*

(51) ‘re-use’ means the use by natural **persons** or legal **entities of** documents held by:

#### *Amendment*

(51) ‘re-use’ means the use by natural or legal **persons of data or** documents held by:

Or. en

## Amendment 26

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 3

Regulation (EU) 2023/2854

Article 4 – paragraph 8



‘8. ***In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the user pursuant to paragraph 6 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the user poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the user without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.’;***

‘8. ***Trade secrets shall only be disclosed provided that all specific necessary measures are taken to preserve the confidentiality of trade secrets in particular with respect to third parties. The data holder and the user can agree measures to preserve the confidentiality of the shared data, in particular in relation to third parties. The Commission shall issue guidance, in consultation with the European Data Innovation Board (EDIB), on the application of this paragraph, such as the assessment of serious economic damage, and the enforceability of trade secrets protection in third countries.’;***

Or. en

*Justification*

*This amendment restores the original balancing logic of the Data Act, under which trade secrets should primarily be protected through appropriate confidentiality safeguards rather than broad refusal rights. It aims to preserve access to data while ensuring proportionate protection of legitimate commercial interests and improving legal certainty through guidance at Union level.*

## Amendment 27

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 4

Regulation (EU) 2023/2854

#### Article 5 – paragraph 11

##### *Text proposed by the Commission*

‘11. *In exceptional circumstances, where the data holder who is a trade secret holder is able to demonstrate that, despite the technical and organisational measures taken by the third party pursuant to paragraph 9 of this Article, it is highly likely to suffer serious economic damage from the disclosure of trade secrets or that the disclosure of trade secrets to the third party poses a high risk of unlawful acquisition, use, or disclosure to third country entities, or entities established in the Union under the direct or indirect control of such entities, which are subject to jurisdictions offering weaker or non-equivalent protection compared to that under Union law, that data holder may refuse on a case-by-case basis a request for access to the specific data in question. That demonstration shall be duly substantiated on the basis of objective elements, such as the enforceability of trade secrets protection in third countries, the nature and level of confidentiality of the data requested, and the uniqueness and novelty of the connected product. It shall be provided in writing to the third party without undue delay. Where the data holder refuses to share data pursuant to this paragraph, it shall notify the competent authority designated pursuant to Article 37.*’;

##### *Amendment*

‘11. *Trade secrets shall only be disclosed to third parties to the extent that they are strictly necessary to fulfil the purpose agreed between the user and the third party and all specific necessary measures agreed between the data holder and the third party are taken by the third party to preserve the confidentiality of the trade secret. In such a case, the nature of the data as trade secrets and the measures for preserving the confidentiality shall be specified in the agreement between the data holder and the third party.*’;

Or. en

##### *Justification*

*This amendment restores the original balancing approach of the Data Act by ensuring that trade secrets are protected primarily through proportionate confidentiality measures and contractual safeguards rather than broad refusal rights. It also strengthens legal certainty by*

*clarifying that access to trade secrets by third parties must remain strictly necessary and subject to clearly defined confidentiality obligations.*

## **Amendment 28**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 6**

Regulation (EU) 2023/2854

Articles 14 and 15

*Text proposed by the Commission*

*Amendment*

**6. Articles 14 and 15 are deleted;** **deleted**

Or. en

#### *Justification*

*Deleting Articles 14 and 15 would significantly reduce the ability of public authorities to access privately held data for important public-interest purposes beyond emergencies, such as policymaking, planning and statistics, potentially increasing dependence on large private actors for access to strategic data.*

## **Amendment 29**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 7**

Regulation (EU) 2023/2854

Article 15a – paragraph 1

*Text proposed by the Commission*

*Amendment*

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to, **mitigating**, or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata

1. Where a public sector body, the Commission, the European Central Bank or a Union body demonstrates an exceptional need to use certain data to carry out its statutory duties in the public interest when responding to or supporting the recovery from a public emergency, it may request from data holders that are legal persons, other than public sectors bodies, to make available those data, including the metadata necessary to interpret and use those data. Upon such duly reasoned request, data holders shall make the data and metadata available to the

available to the requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

requesting public sector body, the Commission, the European Central Bank or Union body. Such requests may also be made where the production of official statistics is required in relation to a public emergency.

Or. en

### *Justification*

*This amendment clarifies and narrows the scope of emergency-related data access by removing the broad and potentially ambiguous concept of “mitigation”. This helps improve legal certainty and ensures that access to data remains more closely linked to concrete emergency response and recovery activities.*

## **Amendment 30**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 7**

Regulation (EU) 2023/2854

Article 15a – paragraph 2

#### *Text proposed by the Commission*

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to **address** the public emergency, personal data may also be requested and, where possible, made available in **pseudonymized** form, subject to appropriate technical and organisational measures to ensure their protection.

#### *Amendment*

2. Where the data requested are necessary to respond to a public emergency, and the requesting body pursuant to paragraph 1 is unable to obtain such data by other means in a timely and effective manner under equivalent conditions, the request shall concern non-personal data. Where the provision of non-personal data is insufficient to **respond to** the public emergency, personal data may also be requested and, where possible, made available in **pseudonymised** form, subject to appropriate technical and organisational measures to ensure their protection.

Or. en

### *Justification*

*This amendment clarifies that the use of data under this provision should remain linked to concrete emergency response activities. The term “respond to” provides a narrower and*

*more operationally precise standard than the broader concept of “addressing” a public emergency.*

## **Amendment 31**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 7 a (new)**

Regulation (EU) 2023/2854

Article 15 b (new)

*Text proposed by the Commission*

*Amendment*

**7a. the following Article 15b is inserted:**

#### **Article 15b**

***Obligation to make data available for clearly defined public-interest purposes outside public emergencies***

- 1. A public sector body, the Commission, the European Central Bank, or a Union body may request data from a data holder where the requested data are strictly necessary for the performance of a task carried out in the public interest and where the objective cannot reasonably be achieved by other means under equivalent conditions.**
- 2. Requests under paragraph 1 shall be limited to clearly defined public-interest purposes laid down in Union or Member State law, including public health, environmental protection, market surveillance, consumer protection, fundamental rights protection, public-interest research, and the production of official statistics.**
- 3. Requests under this Article shall be specific, necessary, proportionate, time-limited, and limited to the minimum data necessary for the stated purpose.**
- 4. Requests shall concern non-personal data. Where non-personal data are insufficient and personal data are strictly necessary, such data may be requested only where a valid legal basis**

*exists under Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation)<sup>1</sup> and subject to prior consultation with the competent supervisory authority where the processing is likely to result in a high risk to the rights and freedoms of natural persons.*

*5. Data made available under this Article shall be subject to purpose limitation, data minimisation, security, deletion or return obligations, transparency, and independent oversight.*

*6. Each request and its legal basis, purpose, data categories, recipient, and duration shall be recorded in a public register, except where publication would seriously undermine the purpose of the request. In such cases, delayed publication shall be required.’;*

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<sup>1a</sup> OJ L 119, 4.5.2016, p. 1.

Or. en

### *Justification*

*This amendment restores a targeted framework for business-to-government data sharing for clearly defined public-interest purposes beyond public emergencies. It ensures that public authorities may continue to access strategically important data where strictly necessary, while introducing stronger safeguards on necessity, proportionality, transparency and legal certainty.*

## **Amendment 32**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 9 – point b a (new)**

Regulation (EU) 2023/2854

Article 17 – paragraph 4

4. Paragraph 3 of this Article does not preclude a public sector body, the Commission, the European Central Bank or a Union body to exchange data obtained pursuant to this Chapter with another public sector body or the Commission, the European Central Bank or a Union body in view of completing the tasks referred to in **Article 15**, as specified in the request in accordance with paragraph 1, point (f), of this Article or to make the data available to a third party where it has delegated, by means of a publicly available agreement, technical inspections or other functions to that third party. The obligations on public sector bodies pursuant to Article 19, in particular safeguards to preserve the confidentiality of trade secrets, shall apply also to such third parties. Where a public sector body, the Commission, the European Central Bank or a Union body transmits or makes data available under this paragraph, it shall notify the data holder from whom the data was received without undue delay.

**(ba) paragraph 4 is replaced by the following:**

‘4. Paragraph 3 of this Article does not preclude a public sector body, the Commission, the European Central Bank or a Union body to exchange data obtained pursuant to this Chapter with another public sector body or the Commission, the European Central Bank or a Union body in view of completing the tasks referred to in **Article 15a**, as specified in the request in accordance with paragraph 1, point (f), of this Article or to make the data available to a third party where it has delegated, by means of a publicly available agreement, technical inspections or other functions to that third party. The obligations on public sector bodies pursuant to Article 19, in particular safeguards to preserve the confidentiality of trade secrets, shall apply also to such third parties. Where a public sector body, the Commission, the European Central Bank or a Union body transmits or makes data available under this paragraph, it shall notify the data holder from whom the data was received without undue delay.’;

Or. en

*Justification*

*This amendment clarifies the conditions under which data obtained under Chapter V may be shared between public authorities or made available to delegated third parties. It strengthens operational cooperation in emergency situations while maintaining transparency obligations and safeguards for confidentiality and trade secret protection.*

**Amendment 33**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 11 – point a a (new)**

Regulation (EU) 2023/2854

Article 19 – paragraph 1 – point c



*Text proposed by the Commission*

*Amendment*

(c) erase the data as soon as they are no longer necessary for the stated purpose and inform the data holder and individuals or organisations that received the data pursuant to Article 21(1) without undue delay that the data have been erased, unless archiving of the data is required in accordance with Union or national law on public access to **documents** in the context of transparency obligations.

**(aa) in paragraph 1, point (c) is replaced by the following:**

‘(c) erase the data as soon as they are no longer necessary for the stated purpose and inform the data holder and individuals or organisations that received the data pursuant to Article 21(1) without undue delay that the data have been erased, unless archiving of the data is required in accordance with Union or national law on public access to **information** in the context of transparency obligations.’;

Or. en

*Justification*

*This amendment clarifies the relationship between data deletion obligations and existing Union or national rules on transparency and public access to information. It helps ensure legal certainty for public authorities while preserving the principle that data should be erased once no longer necessary for the stated purpose.*

## **Amendment 34**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 15**

Regulation (EU) 2023/2854

Article 31 – paragraphs 1a and 1b

*Text proposed by the Commission*

*Amendment*

**15. in Article 31, the following paragraphs 1a and 1b are inserted:**

**deleted**

**‘1a. The obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), where the majority of features and functionalities of the data processing service has been adapted by the provider to the specific needs of the customer, if the provision of such services is based on a contract**



*concluded before or on 12 September 2025.*

*The provider of such data processing services shall not be required to renegotiate or amend a contract for the provision of those services before its expiry if that contract was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void.*

*1b. A provider of a data processing service may include provisions on proportionate early termination penalties in a contract of fixed duration on the provision of data processing services other than those referred to in Article 30(1).*

*Where the provider of data processing service is a small and medium-sized enterprise or a small mid-cap, the obligations laid down in Chapter VI, with the exception of Article 29, and in Article 34 shall not apply to data processing services other than those referred to in Article 30(1), if the provision of such services is based on a contract concluded before or on 12 September 2025.*

*Where the provider of a data processing service is a small and medium-sized enterprise or a small mid-cap, the provider shall not be required to renegotiate or amend a contract for the provision of a data processing service other than those referred to in Article 30(1) before its expiry 1 if that contract was concluded before or on 12 September 2025. Any contractual provision contained in that contract that is contrary to Article 29(1), (2), or (3) shall be considered null and void. ';*

Or. en

#### *Justification*

*This amendment deletes the proposed exemptions in order to preserve the effectiveness of*

*Chapter VI and ensure that switching rights remain meaningful and enforceable in practice. Any derogations from interoperability and switching obligations should remain narrowly defined, proportionate and limited to genuinely justified situations.*

## **Amendment 35**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 16**

Regulation (EU) 2023/2854

Article 32

*Text proposed by the Commission*

*Amendment*

**[...]**

***deleted***

Or. en

#### *Justification*

*This amendment preserves the original scope and structure of Article 32 in order to maintain legal coherence and effective supervision within the Data Act framework. Extending sensitive third-country access obligations to actors subject to a lighter and more voluntary regime could create legal uncertainty and weaken accountability safeguards.*

## **Amendment 36**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 17**

Regulation (EU) 2023/2854

Article 36

*Text proposed by the Commission*

*Amendment*

**17. Article 36 is deleted.**

***deleted***

Or. en

#### *Justification*

*The deletion of Article 36 would remove important minimum safeguards ensuring that smart contracts used in data-sharing agreements remain secure, interoperable and controllable. While legal uncertainty concerns should be addressed, a complete removal of the framework risks creating a regulatory gap in automated data-sharing systems, potentially weakening trust, interoperability and legal certainty.*

## Amendment 37

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32a – paragraph 1 – point a

#### *Text proposed by the Commission*

(a) recognised data intermediation services providers and

#### *Amendment*

(a) recognised data intermediation services providers ***authorised to provide data intermediation services in the Union;*** and

Or. en

#### *Justification*

*This amendment strengthens the legal clarity and credibility of the Union register by clarifying that listed data intermediation service providers are authorised to operate within the Union framework. This contributes to greater transparency, accountability and trust in data-sharing services.*

## Amendment 38

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – point i

#### *Text proposed by the Commission*

(i) ***the value-added*** services are explicitly requested by the ***user***;

#### *Amendment*

(i) ***such other*** services are explicitly requested by the ***data holder or data subject***;

Or. en

#### *Justification*

*This amendment clarifies that value-added services may only be provided at the explicit request of the relevant data holder or data subject and that data may only be used for the specific requested service. This strengthens user control, purpose limitation and legal certainty within data intermediation services.*

## Amendment 39

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – point ii

#### *Text proposed by the Commission*

(ii) the data are not used for other purposes than performing the **value-added** service;

#### *Amendment*

(ii) the data are not used for other purposes than performing the **requested** service;

Or. en

#### *Justification*

*This amendment clarifies that value-added services may only be provided at the explicit request of the relevant data holder or data subject and that data may only be used for the specific requested service. This strengthens user control, purpose limitation and legal certainty within data intermediation services.*

## Amendment 40

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – point iii

#### *Text proposed by the Commission*

(iii) the value-added services are offered through a **functionally** separate **entity**;

#### *Amendment*

(iii) the value-added services are offered through a **separate legal person that is legally, organisationally and operationally separate from the data intermediation service provider**;

Or. en

#### *Justification*

*This amendment strengthens the independence and neutrality of data intermediation services by requiring a clear legal, organisational and operational separation between intermediation activities and other commercial services. This helps reduce conflicts of interest, improve trust and prevent the indirect exploitation of shared data.*

## Amendment 41

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – point iv

#### *Text proposed by the Commission*

(iv) the undertaking seeking to offer the **value-added** services is not designated as a gatekeeper pursuant to Article 3 of Regulation (EU) 2022/1925;

#### *Amendment*

(iv) the undertaking seeking to offer the **other** services is not designated as a gatekeeper pursuant to Article 3 of Regulation (EU) 2022/1925;

Or. en

#### *Justification*

*This amendment improves the clarity and consistency of the provision by referring more broadly to “other services” rather than “value-added services”. It helps ensure that neutrality and anti-tying safeguards apply to all additional commercial services linked to data intermediation activities.*

## Amendment 42

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point d – point v

#### *Text proposed by the Commission*

(v) the commercial terms, including pricing, for the provision of data intermediation services to a data holder or data user are not dependent upon whether the data holder or data user uses **value-added** services provided by the data intermediation services provider or by a related entity;

#### *Amendment*

(v) the commercial terms, including pricing, for the provision of data intermediation services to a data holder or data user are not dependent upon whether the data holder or data user uses **other** services provided by the data intermediation services provider or by a related entity;

Or. en

#### *Justification*

*This amendment improves the clarity and consistency of the provision by referring more broadly to “other services” rather than “value-added services”. It helps ensure that*

*neutrality and anti-tying safeguards apply to all additional commercial services linked to data intermediation activities.*

## **Amendment 43**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e a (new)

*Text proposed by the Commission*

*Amendment*

***(ea) the data intermediation service providers shall not use data made available through their services for advertising, profiling, ranking, price discrimination, training of AI systems or any purpose other than putting those data at the disposal of data users in accordance with the instructions of the data holder or data subject;***

Or. en

*Justification*

*This amendment strengthens the neutrality and trustworthiness of data intermediation services by prohibiting the secondary commercial exploitation of data made available through such services. It helps ensure that data intermediation providers act solely as neutral facilitators and not as entities monetising or repurposing shared data for their own commercial interests.*

## **Amendment 44**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e b (new)

*Text proposed by the Commission*

*Amendment*

***(eb) the data intermediation services provider ensures that the procedure for access to its service is fair, transparent and non-discriminatory for data subjects and data holders, as well as for data***

*users, including with regard to prices and terms of service;*

Or. en

*Justification*

*This amendment strengthens fairness and neutrality obligations for data intermediation services by ensuring that access conditions, pricing and terms of service remain transparent and non-discriminatory for all parties involved.*

**Amendment 45**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e c (new)

*Text proposed by the Commission*

*Amendment*

*(ec) the data intermediation services provider maintains a log record of the data intermediation activity;*

Or. en

*Justification*

*This amendment improves accountability and traceability by requiring data intermediation service providers to maintain records of their intermediation activities.*

**Amendment 46**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32c – paragraph 1 – point e d (new)

*Text proposed by the Commission*

*Amendment*

*(ed) the data intermediation services provider takes necessary technical or organisational measures to ensure an appropriate level of security for the storage, processing and transmission of*

*non-personal data.*

Or. en

## **Amendment 47**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 1 – subparagraph 1

#### *Text proposed by the Commission*

Data intermediation services provider which meets the requirements set out in Article 32c **may** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

#### *Amendment*

Data intermediation services provider which meets the requirements set out in Article 32c **shall** submit an application for registration in the public Union register of recognised data intermediation services providers to the competent authority referred to in Article 32b in the Member State in which they have their main establishment.

Or. en

#### *Justification*

*This amendment restores mandatory registration for data intermediation service providers in order to strengthen transparency, effective supervision and accountability within the Union data-sharing framework.*

## **Amendment 48**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 1 – subparagraph 2

#### *Text proposed by the Commission*

Data altruism organisation which meets the requirements set out in Article 32d **may** submit an application for registration in the public Union register of recognised data altruism organisations to the competent

#### *Amendment*

Data altruism organisation which meets the requirements set out in Article 32d **shall** submit an application for registration in the public Union register of recognised data altruism organisations to the competent



authority referred to in Article 32b in the Member State in which they have their main establishment.

authority referred to in Article 32b in the Member State in which they have their main establishment.

Or. en

*Justification*

*This amendment restores mandatory registration for data intermediation service providers in order to strengthen transparency, effective supervision and accountability within the Union data-sharing framework.*

**Amendment 49**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 3

*Text proposed by the Commission*

*Amendment*

**(3) Competent authorities shall establish the necessary application forms.** **deleted**

Or. en

*Justification*

*This amendment aims at preserving a more harmonised and coherent Union framework for the registration and supervision of data intermediation services and data altruism organisations. Removing fragmented national application form requirements helps avoid divergent supervisory approaches and supports greater legal certainty and consistency across Member States.*

**Amendment 50**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 3 a (new)

*Text proposed by the Commission*

*Amendment*

**(3a) The Commission shall adopt implementing acts establishing a harmonised application form for the**

***registration of data intermediation  
services and recognised data altruism  
organisations.***

Or. en

*Justification*

*This amendment ensures a harmonised Union-wide registration framework through implementing acts adopted by the Commission, thereby reducing fragmentation and improving legal certainty and supervisory consistency across Member States.*

**Amendment 51**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 3 b (new)

*Text proposed by the Commission*

*Amendment*

***(3b) The harmonised application form shall ensure the consistent application of this Regulation across the Union and shall require applicants to provide a clear description of the intended data intermediation or data altruism processing activities.***

Or. en

*Justification*

*This amendment strengthens consistent application and supervision across the Union by ensuring that competent authorities receive clear and comparable information on the intended activities of applicants.*

**Amendment 52**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 3 c (new)

*Text proposed by the Commission*

*Amendment*

**(3c) In particular, the application form shall include information on:**

- (a) the nature and scope of the intended activities;**
- (b) the types of data concerned; and**
- (c) any intended value-added services related to the processing of the data.**

Or. en

*Justification*

*This amendment supports more effective oversight and regulatory clarity by requiring applicants to provide meaningful information on their planned activities, the categories of data involved and any additional services linked to the processing of data.*

## **Amendment 53**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 3 d (new)

*Text proposed by the Commission*

*Amendment*

**(3d) The information required pursuant to this Article shall enable competent authorities to obtain sufficient and reliable information to effectively supervise the data intermediation and data altruism activities carried out under this Regulation.**

Or. en

## **Amendment 54**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32e – paragraph 4 – subparagraph 1

*Text proposed by the Commission*

Where a data intermediation services provider has submitted all necessary information pursuant to paragraph 3 of this Article, and complies with the requirements set out in Article 32c, the competent authority shall, within 12 weeks after the receipt of the application for registration, take a decision on whether the provider complies with the criteria set out in Article 32c. Where the provider complies with the criteria, the competent authority shall submit the relevant information to the Commission which shall register the providers in the public Union register as a recognised data intermediation services provider.

*Amendment*

Where a data intermediation services provider has submitted all necessary information pursuant to paragraph 3 of this Article, and complies with the requirements set out in Article 32c, the competent authority shall, within 12 weeks after the receipt of the application for registration, take a decision on whether the provider complies with the criteria set out in Article 32c. Where the ***competent authority requests the applicant to provide additional information necessary to assess compliance with Article 32c, the time limit shall be suspended until the competent authority has received that information. In duly justified cases, where the assessment of compliance requires additional time due to the complexity or novelty of the services, the competent authority may extend the time limit once by a maximum of 12 weeks and shall inform the applicant accordingly, stating reasons.*** Where the provider complies with the criteria, the competent authority shall submit the relevant information to the Commission which shall register the providers in the public Union register as a recognised data intermediation services provider.

Or. en

*Justification*

*This amendment strengthens the effectiveness and reliability of the registration procedure by allowing competent authorities sufficient time and information to properly assess compliance, particularly in complex or innovative cases. It also improves consistency by applying the same procedural safeguards to data altruism organisations.*

**Amendment 55**

**Proposal for a regulation**

**Article 1 – paragraph 1 – point 18**

*Text proposed by the Commission*

*Amendment*

**(4a) Recognised data altruism organisations shall publish an annual transparency report describing the categories of data collected, the objectives of general interest pursued, the categories of data users receiving access, any third-country transfers or access, the safeguards applied, and the number of withdrawals of consent or permission.**

Or. en

*Justification*

*This amendment strengthens transparency and accountability obligations for recognised data altruism organisations by requiring regular public reporting on data use, third-country transfers, safeguards and consent withdrawals.*

## **Amendment 56**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32i – paragraph 5

*Text proposed by the Commission*

*Amendment*

(5) This Chapter ***builds on, and is without prejudice to, Union and national access regimes, in particular with regard to the granting of access to and disclosure of official*** documents.

(5) This Chapter ***does not create any obligation on public sector bodies to allow the re-use of data or documents, nor does it release public sector bodies from their confidentiality obligations under Union or national law.***

Or. en

*Justification*

*This amendment reintroduces the general horizontal principle currently contained in Article 1(2) DGA concerning the relationship between this Chapter, existing Union and national access regimes, and other legal obligations. It helps ensure legal certainty by clarifying that the Regulation does not alter existing rules governing access to documents, confidentiality*

*obligations or applicable legal frameworks.*

## **Amendment 57**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32n – paragraph 1

#### *Text proposed by the Commission*

(1) Data or documents in scope of this Section shall be re-usable for commercial or non-commercial purposes in accordance with Section 1 and Section 2 Subsection 3.

#### *Amendment*

(1) Data or documents in scope of this Section shall, ***where their re-use is allowed***, be re-usable for commercial or non-commercial purposes in accordance with Section 1 and Section 2 Subsection 3.

Or. en

#### *Justification*

*This amendment reintroduces the general horizontal principle currently contained in Article 1(2) DGA concerning the relationship between this Chapter, existing Union and national access regimes, and other legal obligations. It helps ensure legal certainty by clarifying that the Regulation does not alter existing rules governing access to documents, confidentiality obligations or applicable legal frameworks.*

## **Amendment 58**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32r – paragraph 2

#### *Text proposed by the Commission*

(2) When re-use is subject to conditions, those conditions shall not unnecessarily restrict possibilities for re-use and shall not be used to restrict competition.

#### *Amendment*

(2) When re-use is subject to conditions, those conditions shall not unnecessarily restrict possibilities for re-use and shall not be used to restrict competition, ***nor shall they undermine the principle of open data as freely reusable for any purpose, subject only to proportionate and justified limitations in line with paragraph 1.***

*Justification*

*This amendment preserves the core principles of the open data framework, in particular non-discriminatory re-use and the use of open licences as the default regime. It seeks to avoid fragmentation and legal uncertainty resulting from differentiated licence conditions for certain categories of re-users, while still allowing proportionate contributions from very large enterprises that do not undermine open access, interoperability or public-interest re-use.*

**Amendment 59****Proposal for a regulation****Article 1 – paragraph 1 – point 18**

Regulation (EU) 2023/2854

Article 32r – paragraph 3

*Text proposed by the Commission*

(3) In Member States where licences are used, public sector bodies shall ensure that the standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format and able to be processed electronically.

*Amendment*

(3) In Member States where licences are used, public sector bodies shall ensure that the standard licences for the re-use of public sector data or documents, which can be adapted to meet particular licence applications, are available in digital format and able to be processed electronically, ***and that such licences are, as a default, open licences enabling free and unrestricted re-use, in particular for public interest purposes.***

*Justification*

*This amendment preserves the core principles of the open data framework, in particular non-discriminatory re-use and the use of open licences as the default regime. It seeks to avoid fragmentation and legal uncertainty resulting from differentiated licence conditions for certain categories of re-users, while still allowing proportionate contributions from very large enterprises that do not undermine open access, interoperability or public-interest re-use.*

## Amendment 60

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 18

Regulation (EU) 2023/2854

Article 32r – paragraph 3

#### *Text proposed by the Commission*

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises. Such conditions shall be proportionate and should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data, including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925.

#### *Amendment*

(4) Public sector bodies may establish special conditions for the re-use of data and documents by very large enterprises. Such conditions shall be proportionate and should be based on objective criteria. They shall be established taking into consideration the economic power, or the ability of the entity to acquire data, including in particular a designation as a gatekeeper under Regulation (EU) 2022/1925, ***and may include requirements to contribute financially or otherwise to the sustainability, maintenance, and enrichment of the underlying data infrastructure, provided that such conditions do not restrict or negatively affect re-use by research organisations, non-commercial users, or open knowledge projects.***

Or. en

#### *Justification*

*This amendment preserves the core principles of the open data framework, in particular non-discriminatory re-use and the use of open licences as the default regime. It seeks to avoid fragmentation and legal uncertainty resulting from differentiated licence conditions for certain categories of re-users, while still allowing proportionate contributions from very large enterprises that do not undermine open access, interoperability or public-interest re-use.*

## Amendment 61

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 19

Regulation (EU) 2023/2854

Article 38



**19. Article 38 is replaced by the following:** **deleted**

**‘(1) Without prejudice to any other administrative or judicial remedy, natural and legal persons shall have the right to lodge a complaint, individually or, where relevant, collectively:**

**(a) with the relevant competent authority in the Member State of their habitual residence, place of work or establishment if they consider that their rights under this Regulation have been infringed;**

**(b) any matter falling within the scope of this Regulation specifically against a recognised data intermediation services provider or a recognised data altruism organisation, with the relevant competent authority for the registration of data intermediation services or the relevant competent authority for the registration of data altruism organisations.**

**(2) The data coordinator shall, upon request, provide all the necessary information to natural and legal persons for the lodging of their complaints with the appropriate competent authority.**

**(3) The competent authority with which the complaint has been lodged shall inform the complainant, in accordance with national law, of:**

**(a) the progress of the proceedings, of the decision taken; and**

**(b) the judicial remedies provided for in Article 39.’;**

Or. en

*Justification*

*This amendment re-inserts Article 38(4) of the current Data Act in order to preserve stronger cooperation and information-exchange mechanisms between competent authorities when handling complaints. It improves legal certainty, supports coherent cross-border enforcement*

*and reduces the risk of procedural fragmentation or future disputes.*

## **Amendment 62**

### **Proposal for a regulation**

#### **Article 1 – paragraph 1 – point 22**

Regulation (EU) 2023/2854

Article 41a – paragraph 2

#### *Text proposed by the Commission*

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group.

#### *Amendment*

(2) It shall be composed at least of representatives of Member States competent for matters related to data, the competent authorities for enforcement of Chapters II, III, V, VIIa and VIIc of this Regulation, the European Data Protection Board, the European Data Protection Supervisor, ENISA, the EU SME Envoy or a representative appointed by the network of SME envoys. ***If a Member State has designated more than one competent authority or competent body, they shall be represented in the plenary meetings of the Board by the designated data coordinator. Other competent authorities or competent bodies entrusted with specific operational responsibilities for the application and enforcement of this Regulation may participate in the thematic subgroups of the Board relevant for their responsibilities.*** The Commission may decide to add additional categories of members. In its appointments of individual experts, the Commission shall aim to achieve gender and geographical balance among the members of the group.

Or. en

#### *Justification*

*This amendment clarifies the representation and participation structure within the European Data Innovation Board, helping ensure more effective coordination between competent authorities and better involvement of bodies with specific operational responsibilities in relevant thematic discussions.*

## Amendment 63

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 23

Regulation (EU) 2023/2854

Article 42 – paragraph 1 – point c

#### *Text proposed by the Commission*

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information;

#### *Amendment*

(c) facilitating cooperation between competent authorities through capacity-building and the exchange of information, ***in particular by establishing methods for the efficient exchange of information relating to the enforcement of the rights and obligations under Chapters II, III and V in cross-border cases, including coordination with regard to the setting of penalties;***

Or. en

#### *Justification*

*This amendment preserves the EDIB's operational role in supporting cooperation between competent authorities, particularly in cross-border enforcement situations. Maintaining mechanisms for the efficient exchange of information and coordination on penalties can help reduce fragmentation, strengthen consistent enforcement and improve legal certainty across the Union.*

## Amendment 64

### Proposal for a regulation

#### Article 1 – paragraph 1 – point 23

Regulation (EU) 2023/2854

Article 42 – paragraph 1 – point d a (new)

#### *Text proposed by the Commission*

#### *Amendment*

***(da) advising and assisting the Commission with regard to the implementation of Chapters II, III, V, VII, VIIa and VIIc by suggesting development of guidance for businesses and public organisations;***

*Justification*

*This amendment strengthens the practical role of the EDIB in supporting the consistent implementation of the Data Act across sectors. Clarifying the EDIB's role in contributing to guidance and cross-sector standardisation can improve legal certainty, reduce fragmentation and help businesses, public authorities and competent bodies apply the framework more coherently in practice.*

**Amendment 65****Proposal for a regulation****Article 1 – paragraph 1 – point 23**

Regulation (EU) 2023/2854

Article 42 – paragraph 1 – point d b (new)

*Text proposed by the Commission**Amendment*

***(db) advising and assisting the Commission on cross-sector standardisation issues;***

*Justification*

*This amendment strengthens the practical role of the EDIB in supporting the consistent implementation of the Data Act across sectors. Clarifying the EDIB's role in contributing to guidance and cross-sector standardisation can improve legal certainty, reduce fragmentation and help businesses, public authorities and competent bodies apply the framework more coherently in practice.*

**Amendment 66****Proposal for a regulation****Article 1 – paragraph 1 – point 23**

Regulation (EU) 2023/2854

Article 42 – paragraph 1 – point d c (new)

*Text proposed by the Commission**Amendment*

***(dc) ensuring active cooperation and coordination with other relevant bodies and expert groups to ensure policy consistency in the digital single market;***

*Justification*

*This amendment promotes greater coherence across the EU digital regulatory framework by strengthening cooperation between the EDIB and other relevant authorities, expert groups and governance bodies.*

**Amendment 67****Proposal for a regulation****Article 10 – paragraph 1**

*Text proposed by the Commission*

*Amendment*

**1. Regulation 2019/1150/EU is *deleted*  
repealed with effect from [date = entry  
into application of this Regulation].**

*Justification*

*The Platform-to-Business Regulation continues to play an important role in ensuring fairness, transparency and predictability across the broader online platform economy, particularly for SMEs operating outside the scope of the Digital Markets Act. While the DSA and DMA introduce important new rules, they do not fully replace the P2B Regulation's safeguards on ranking transparency, contractual changes, complaint-handling and unfair suspension practices. Repealing the Regulation therefore risks creating legal gaps and weakening the position of smaller business users.*

**Amendment 68****Proposal for a regulation****Article 10 – paragraph 2**

*Text proposed by the Commission*

*Amendment*

**2. By way of derogation from *deleted*  
paragraph 1, the following provisions  
shall continue to apply until 31 December  
2032:**

**(a) Article 2, point (1);**

**(b) Article 2, point (2);**

- (c) *Article 2, point (5);*
- (d) *Article 4;*
- (e) *Article 11;*
- (f) *Article 15.*

Or. en

#### *Justification*

*The Platform-to-Business Regulation continues to play an important role in ensuring fairness, transparency and predictability across the broader online platform economy, particularly for SMEs operating outside the scope of the Digital Markets Act. While the DSA and DMA introduce important new rules, they do not fully replace the P2B Regulation's safeguards on ranking transparency, contractual changes, complaint-handling and unfair suspension practices. Repealing the Regulation therefore risks creating legal gaps and weakening the position of smaller business users.*

## ANNEX: DECLARATION OF INPUT

Pursuant to Article 8 of Annex I to the Rules of Procedure, the rapporteur for opinion declares that he included in his opinion input on matters pertaining to the subject of the file that he received, in the preparation of the draft opinion, from the following interest representatives falling within the scope of the Interinstitutional Agreement on a mandatory transparency register<sup>1</sup>, or from the following representatives of public authorities of third countries, including their diplomatic missions and embassies:

|                                                                                                                                      |
|--------------------------------------------------------------------------------------------------------------------------------------|
| <b>1. Interest representatives falling within the scope of the Interinstitutional Agreement on a mandatory transparency register</b> |
| <input type="checkbox"/> BEUC – The European Consumer Organisation                                                                   |
| <input type="checkbox"/> HOTREC – Hotels, Restaurants and Cafés in Europe                                                            |
| <input type="checkbox"/> ESBG – European Savings and Retail Banking Group                                                            |
| <input type="checkbox"/> Confindustria – General Confederation of Italian Industry                                                   |
| <input type="checkbox"/> FPF – Future of Privacy Forum                                                                               |
| <input type="checkbox"/> DIGITALSME – European DIGITAL SME Alliance                                                                  |
| <input type="checkbox"/> ETUC – European Trade Union Confederation                                                                   |
| <input type="checkbox"/> DigitalEurope – DIGITALEUROPE                                                                               |
| <input type="checkbox"/> noyb – None Of Your Business (European Center for Digital Rights)                                           |
| <input type="checkbox"/> ADPA – Automotive Data Publishers’ Association                                                              |
| <input type="checkbox"/> EDRi – European Digital Rights                                                                              |
| <input type="checkbox"/> DAV – Deutscher Anwaltverein (German Bar Association)                                                       |
|                                                                                                                                      |
|                                                                                                                                      |
| <b>2. Representatives of public authorities of third countries, including their diplomatic missions and embassies</b>                |
| (None)                                                                                                                               |
|                                                                                                                                      |
|                                                                                                                                      |

The list above is drawn up under the exclusive responsibility of the rapporteur for opinion.

Where natural persons are identified in the list by their name, by their function or by both, the rapporteur for opinion declares that he has submitted to the natural persons concerned the European Parliament’s Data Protection Notice No 484 (<https://www.europarl.europa.eu/data-protect/index.do>), which sets out the conditions applicable to the processing of their personal data and the rights linked to that processing.

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<sup>1</sup> Interinstitutional Agreement of 20 May 2021 between the European Parliament, the Council of the European Union and the European Commission on a mandatory transparency register (OJ L 207, 11.6.2021, p. 1, ELI: [http://data.europa.eu/eli/agree\\_interinst/2021/611/oj](http://data.europa.eu/eli/agree_interinst/2021/611/oj)).